

COMMITTEE ON PUBLIC SAFETY
SENATE AMENDMENTS TO H.B. 2673
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. ~~Section 31-126, Arizona Revised Statutes, is amended~~
3 ~~to read:~~

4 ~~31-126. Examination; county prisoners; mental disorders;~~
5 ~~definition~~

6 ~~A. When a person WHO IS confined in the county jail upon ON THE~~
7 ~~PERSON'S arrest for or conviction of a misdemeanor CRIME manifests~~
8 ~~symptoms of a mental disorder, the sheriff shall notify CAUSE THE PERSON~~
9 ~~TO BE EXAMINED WITHIN TWENTY-FOUR HOURS BY a licensed physician who shall~~
10 ~~examine the person. If in the judgment of a THE licensed physician the~~
11 ~~person is suffering from a mental disorder, proceedings shall be taken AND~~
12 ~~AS A RESULT OF THE MENTAL DISORDER IS A DANGER TO SELF, A DANGER TO OTHERS~~
13 ~~OR HAS A PERSISTENT OR ACUTE DISABILITY OR GRAVE DISABILITY, THE SHERIFF~~
14 ~~SHALL FILE A PETITION FOR EVALUATION as prescribed by title 36, chapter 5.~~
15 ~~IF THE PETITION FOR EVALUATION IS GRANTED, THE SHERIFF SHALL TRANSPORT THE~~
16 ~~PRISONER TO THE APPROPRIATE EVALUATION AGENCY. The proceedings under~~
17 ~~title 36, chapter 5, shall be separate from court proceedings relating to~~
18 ~~the misdemeanor charge CRIMINAL CHARGE AGAINST THE PERSON.~~

19 ~~B. ON ADMISSION TO THE COUNTY JAIL, A PERSON SHALL BE SCREENED TO~~
20 ~~DETERMINE WHETHER THE PERSON HAS BEEN DIAGNOSED WITH A MENTAL ILLNESS AND~~
21 ~~HAS BEEN RECEIVING TREATMENT FOR THE ILLNESS AND WHETHER THE PERSON HAS~~
22 ~~BEEN DESIGNATED AS SERIOUSLY MENTALLY ILL. IF A PRIOR DIAGNOSIS OF MENTAL~~
23 ~~ILLNESS HAS BEEN MADE, THE SHERIFF SHALL DETERMINE WHAT, IF ANY, TREATMENT~~
24 ~~WAS BEING PROVIDED TO THE PRISONER BEFORE CONFINEMENT IN THE COUNTY JAIL,~~
25 ~~INCLUDING SPECIFICALLY WHAT MEDICATIONS THE PRISONER WAS TAKING, AND SHALL~~
26 ~~TAKE IMMEDIATE STEPS TO ENSURE THAT THE PRISONER CONTINUES TO RECEIVE~~
27 ~~PRESCRIBED MEDICATIONS UNINTERRUPTED WITHIN TWENTY-FOUR HOURS AFTER~~
28 ~~ARRIVING IN THE COUNTY JAIL AND, TO THE EXTENT PRACTICABLE, THAT OTHER~~

~~1 TREATMENTS CONTINUE UNINTERRUPTED WHILE THE PRISONER IS IN THE COUNTY~~
~~2 JAIL.~~

~~3 C. IF A PRISONER HAS PREVIOUSLY BEEN DIAGNOSED WITH A MENTAL~~
~~4 ILLNESS OR IS DISCOVERED TO HAVE A MENTAL ILLNESS ON EXAMINATION BY A~~
~~5 LICENSED PHYSICIAN BUT HAS NOT BEEN DESIGNATED AS SERIOUSLY MENTALLY ILL,~~
~~6 THE SHERIFF SHALL SUBMIT A REQUEST FOR A SERIOUS MENTAL ILLNESS~~
~~7 DETERMINATION FROM THE APPROPRIATE REGIONAL BEHAVIORAL HEALTH AUTHORITY OR~~
~~8 THE STATE DEPARTMENT OF CORRECTIONS, AS APPROPRIATE, WITHIN SEVEN DAYS~~
~~9 AFTER RECEIVING THE DIAGNOSIS. THE SHERIFF SHALL PROVIDE THE SERIOUS~~
~~10 MENTAL ILLNESS EVALUATION AGENCY WITH ALL AVAILABLE MEDICAL AND~~
~~11 PSYCHIATRIC EVALUATIONS AND REPORTS SO THAT AN ACCURATE SERIOUS MENTAL~~
~~12 ILLNESS DETERMINATION CAN BE MADE.~~

~~13 D. FOR THE PURPOSES OF THIS SECTION, "LICENSED PHYSICIAN" HAS THE~~
~~14 SAME MEANING PRESCRIBED IN SECTION 36-501.>>~~

~~15 <<Sec. 2. Section 31-226, Arizona Revised Statutes, is amended to~~
~~16 read:~~

~~17 31-226. Prisoners; mental disorders; procedure for voluntary~~
~~18 or involuntary hospitalization; notice; hearing;~~
~~19 transfer; reports; return to incarceration or~~
~~20 release; costs; definition~~

~~21 A. If WITHIN SEVENTY-TWO HOURS AFTER a prisoner WHO IS confined in~~
~~22 any facility operated by the state department of corrections displays~~
~~23 symptoms of mental disorder to such a degree that transfer to the state~~
~~24 hospital or a licensed behavioral health or mental health inpatient~~
~~25 treatment facility operated by the state department of corrections is~~
~~26 necessary to ensure adequate treatment, the psychiatrist of the facility,~~
~~27 or if no psychiatrist is available, the physician at the facility, shall~~
~~28 examine the prisoner and make a written report of the psychiatrist's or~~
~~29 physician's recommendations to the director of the state department of~~
~~30 corrections. On receipt of a report that states that the psychiatrist or~~
~~31 physician finds that the symptoms described in this subsection exist, the~~
~~32 director of the state department of corrections may allow the prisoner to~~
~~33 voluntarily transfer to a licensed behavioral health or mental health~~
~~34 inpatient treatment facility operated by the state department of~~
~~35 corrections if the prisoner is an adult male, to the state hospital or a~~
~~36 licensed behavioral health treatment facility operated by the state~~
~~37 department of corrections if the prisoner is a female or to the state~~
~~38 hospital if the prisoner is a minor. If the patient does not voluntarily~~
~~39 transfer, the director shall file a petition with the superior court in~~
~~40 the county in which the prisoner is incarcerated for transfer for~~
~~41 treatment of the prisoner to the state hospital or a licensed behavioral~~
~~42 health treatment facility operated by the state department of corrections~~
~~43 if the prisoner is a female, to a licensed behavioral health or mental~~
~~44 health inpatient treatment facility operated by the state department of~~
~~45 corrections if the prisoner is an adult male or to the state hospital if~~
~~46 the prisoner is a minor.~~

1 ~~B. At least ten days before the court conducts the hearing on the~~
2 ~~petition for transfer, the state department of corrections shall provide a~~
3 ~~copy of the petition and written notice of the hearing to the prisoner and~~
4 ~~written notice of the prisoner's rights at the hearing.~~

5 ~~C. At least five days before the hearing, if the prisoner has not~~
6 ~~employed counsel, the court shall appoint counsel or an independent~~
7 ~~advisor to represent the prisoner at the hearing. On application by the~~
8 ~~prisoner the court shall also determine the necessity for any expert~~
9 ~~testimony by medical witnesses and authorize any necessary appointment and~~
10 ~~compensation for these witnesses at the state's expense. Notice shall be~~
11 ~~given to the state hospital if the prisoner is a female or a minor, and~~
12 ~~the state hospital shall be provided with an opportunity to participate in~~
13 ~~the hearing as an interested party, if it so desires.~~

14 ~~D. At the hearing, the prisoner or the prisoner's representative~~
15 ~~may call witnesses to testify and may confront and cross-examine witnesses~~
16 ~~called by the state department of corrections except on a finding of good~~
17 ~~cause for not permitting ALLOWING such presentation, confrontation or~~
18 ~~cross-examination.~~

19 ~~E. If the prisoner is determined to be suffering from a mental~~
20 ~~disorder to such a degree that transfer to the state hospital or a~~
21 ~~licensed behavioral health or mental health inpatient treatment facility~~
22 ~~operated by the state department of corrections is necessary to ensure~~
23 ~~adequate treatment, the court shall order and direct that the prisoner be~~
24 ~~transferred for treatment to the state hospital in the legal custody of~~
25 ~~the state department of corrections or a licensed behavioral health~~
26 ~~treatment facility operated by the state department of corrections if the~~
27 ~~prisoner is a female, to a licensed behavioral health or mental health~~
28 ~~inpatient treatment facility operated by the state department of~~
29 ~~corrections if the prisoner is an adult male or to the state hospital if~~
30 ~~the prisoner is a minor. The transfer of the prisoner to the state~~
31 ~~hospital shall be made by the state department of corrections. The court~~
32 ~~order must be in writing and state the evidence relied on and the reasons~~
33 ~~for transferring the prisoner.~~

34 ~~F. The superintendent of the state hospital shall provide the state~~
35 ~~department of corrections with a quarterly report of the condition of a~~
36 ~~prisoner WHO IS transferred to the state hospital. The superintendent of~~
37 ~~the state hospital and the director of the state department of corrections~~
38 ~~shall also provide the superior court in the county which THAT has~~
39 ~~jurisdiction over the transfer proceeding with a quarterly report of the~~
40 ~~condition of the prisoner.~~

41 ~~G. If, in the opinion of the superintendent of the state hospital~~
42 ~~or the director of the state department of corrections, the prisoner no~~
43 ~~longer suffers from a mental disorder such that placement in the state~~
44 ~~hospital or the licensed behavioral health or mental health inpatient~~
45 ~~treatment facility operated by the state department of corrections is~~
46 ~~necessary to ensure adequate treatment, the superintendent of the state~~
47 ~~hospital or the director of the state department of corrections shall~~

1 ~~order the prisoner to a licensed behavioral health treatment facility~~
2 ~~operated by the state department of corrections or returned to a prison~~
3 ~~facility to serve the prisoner's unexpired term, and the period the~~
4 ~~prisoner was confined in the state hospital or the behavioral health or~~
5 ~~mental health treatment agency shall be considered as though incarcerated~~
6 ~~in a state department of corrections facility. If the term of~~
7 ~~imprisonment expires during the time the prisoner is confined in the state~~
8 ~~hospital or the behavioral health or mental health inpatient treatment~~
9 ~~facility, the director of the state department of corrections shall issue~~
10 ~~to the prisoner an absolute discharge at that time, and the prisoner's~~
11 ~~rights to release from the hospital are as provided in title 36,~~
12 ~~chapter 5.~~

13 ~~H. A PETITION FOR court-ordered evaluation may SHALL be made FILED~~
14 ~~in accordance with title 36, chapter 5, article 4 if, within one hundred~~
15 ~~twenty days of the prisoner's scheduled release from prison or during any~~
16 ~~time that the prisoner is on release status, the prisoner appears to be,~~
17 ~~as a result of a mental disorder, a danger to self or A DANGER to others,~~
18 ~~or is a prisoner with a grave disability OR HAS A PERSISTENT OR ACUTE~~
19 ~~DISABILITY OR GRAVE DISABILITY, and is EITHER UNABLE OR unwilling to~~
20 ~~undergo a voluntary evaluation. For the purposes of this section, an~~
21 ~~inpatient mental health treatment facility operated by the state~~
22 ~~department of corrections is authorized to act as a screening agency. If~~
23 ~~the court orders inpatient evaluation, the order shall take effect on the~~
24 ~~day of the prisoner's scheduled release, THE EVALUATION SHALL TAKE PLACE~~
25 ~~WITHIN SEVENTY-TWO HOURS WITHIN THE STATE DEPARTMENT OF CORRECTIONS or, if~~
26 ~~the prisoner is on release status, on a date determined by the court, and~~
27 ~~the state department of corrections shall deliver TRANSPORT the prisoner~~
28 ~~to the evaluation agency. THE EVALUATION MUST TAKE PLACE IN A LOCATION~~
29 ~~THAT PROVIDES CONFIDENTIAL COMMUNICATION AND BE DONE BY A BEHAVIORAL~~
30 ~~HEALTH PROFESSIONAL WHO IS QUALIFIED TO MAKE THE EVALUATION. Thereafter,~~
31 ~~all further evaluation and treatment shall be in accordance with the~~
32 ~~provisions of title 36, chapter 5, as they THAT pertain to civil patients.~~

33 ~~I. The state department of corrections shall pay all costs incurred~~
34 ~~for the prisoner during the term of the prisoner's sentence.~~

35 ~~J. The county in which the court is located shall be reimbursed for~~
36 ~~expenses of the proceedings incurred by the county in accordance with~~
37 ~~section 31-227.~~

38 ~~K. As used in FOR THE PURPOSES OF this section, "mental disorder"~~
39 ~~has the same meaning prescribed in section 36-501.>>~~

40 ~~<<Sec. 3. Title 31, chapter 2, article 2, Arizona Revised Statutes,~~
41 ~~is amended by adding section 31-226.02, to read:~~

42 ~~31-226.02. Prisoners; mental disorders; procedures for~~
43 ~~custody transfer; treatment plan; definition~~

44 ~~A. FOR ANY PRISONER WHO HAS BEEN DIAGNOSED WITH A MENTAL DISORDER~~
45 ~~OR WHO IS MANIFESTING THE SYMPTOMS OF A MENTAL DISORDER, ON CONVICTION FOR~~
46 ~~A CRIME THAT REQUIRES SERVING A SENTENCE IN A FACILITY UNDER THE~~
47 ~~JURISDICTION OF THE DEPARTMENT, BEFORE THE PRISONER IS DELIVERED INTO THE~~

1 ~~CUSTODY OF THE DEPARTMENT, THE MEDICAL DIRECTOR OF THE DEPARTMENT SHALL~~
2 ~~ENSURE THAT ALL OF THE FOLLOWING OCCUR:~~

3 1. ~~THE PRISONER IS EVALUATED BY A PSYCHIATRIST TO DETERMINE WHETHER~~
4 ~~THE PRISONER SUFFERS OR CONTINUES TO SUFFER FROM A MENTAL DISORDER AND TO~~
5 ~~DETERMINE A WRITTEN TREATMENT PLAN FOR THE PRISONER WHILE INCARCERATED~~
6 ~~UNDER THE DEPARTMENT'S JURISDICTION. THE TREATMENT PLAN SHALL INCLUDE, AT~~
7 ~~A MINIMUM:~~

8 (a) ~~THE IDENTIFICATION OF ANY MEDICATIONS THE PRISONER IS CURRENTLY~~
9 ~~PRESCRIBED OR SHOULD BE PRESCRIBED TO STABILIZE OR IMPROVE THE MENTAL~~
10 ~~DISORDER AND WHETHER THE MEDICATIONS NEED TO BE ADMINISTERED UNDER CERTAIN~~
11 ~~CONDITIONS OR REQUIREMENTS, SUCH AS A "WATCH SWALLOW" INSTRUCTION OR BY~~
12 ~~INJECTION, TO ENSURE ADHERENCE TO THE TREATMENT REGIMEN.~~

13 (b) ~~THE IDENTIFICATION OF ANY OTHER CHRONIC MEDICAL CONDITION,~~
14 ~~INCLUDING DIABETES, EPILEPSY OR CARDIOVASCULAR DISORDER, AND ANY~~
15 ~~MEDICATION NECESSARY TO ADDRESS ANY CHRONIC MEDICAL CONDITION.~~

16 (c) ~~AN ASSESSMENT OF THE APPROPRIATE PLACEMENT FOR THE PRISONER IN~~
17 ~~THE DEPARTMENT'S SYSTEM, INCLUDING THE NEED TO BE SEPARATED FROM THE~~
18 ~~GENERAL PRISON POPULATION IN ORDER TO AVOID HARM TO THE PRISONER, OTHER~~
19 ~~PRISONERS OR STAFF.~~

20 (d) ~~ANY OTHER PROVISIONS THAT THE MEDICAL DIRECTOR OR THE COURT~~
21 ~~BELIEVES ARE NECESSARY TO ADEQUATELY ADDRESS THE PRISONER'S MENTAL~~
22 ~~DISORDER OR TO PROTECT THE WELL-BEING OF THE PRISONER AND OTHER PERSONS~~
23 ~~WHILE THE PRISONER IS INCARCERATED.~~

24 2. ~~THE PRISONER IS EVALUATED FOR A DETERMINATION OF A SERIOUS~~
25 ~~MENTAL ILLNESS DESIGNATION AND ENTITLEMENT TO ADDITIONAL BENEFITS THAT~~
26 ~~COME WITH THIS DESIGNATION.~~

27 3. ~~THE WRITTEN TREATMENT PLAN IS APPROVED BY THE COURT AND~~
28 ~~ACCOMPANIES THE PRISONER WHEN TRANSFERRED TO THE DEPARTMENT TO BEGIN~~
29 ~~SERVING A SENTENCE PURSUANT TO AN ORDER OF THE COURT.~~

30 B. ~~ON TRANSFER TO THE DEPARTMENT TO BEGIN SERVING A SENTENCE OF~~
31 ~~INCARCERATION, THE MEDICAL DIRECTOR OF THE DEPARTMENT SHALL IDENTIFY THE~~
32 ~~PRISONER IN SOME EASILY RECOGNIZABLE MANNER INDICATING THAT THE PRISONER~~
33 ~~HAS BEEN IDENTIFIED AS A PRISONER NEEDING PARTICULAR ATTENTION BECAUSE OF~~
34 ~~A MEDICAL, MENTAL HEALTH OR SUPERVISION NEED.~~

35 C. ~~DURING THE PRISONER'S TERM OF INCARCERATION:~~

36 1. ~~THE WRITTEN TREATMENT PLAN SHALL BE MANAGED AND AMENDED, WHEN~~
37 ~~NECESSARY, IN ACCORDANCE WITH BEST EVIDENCE-BASED PRACTICES IN ORDER TO~~
38 ~~STABILIZE OR IMPROVE THE PRISONER'S MEDICAL OR MENTAL HEALTH CONDITIONS.~~

39 2. ~~THE DEPARTMENT SHALL GIVE THE PRISONER'S MEDICAL RECORDS,~~
40 ~~INCLUDING MENTAL HEALTH RECORDS, TO THE PRISONER'S GUARDIAN OR DESIGNEE IF~~
41 ~~THE PRISONER HAS A GUARDIAN OR DESIGNATES A PERSON TO ACCESS THE RECORDS.~~

42 D. ~~FOR THE PURPOSES OF THIS SECTION, "MENTAL DISORDER" HAS THE SAME~~
43 ~~MEANING PRESCRIBED IN SECTION 36-501.>>~~

44 <<Sec. 4. Section 36-521, Arizona Revised Statutes, is amended to
45 read:

46 36-521. ~~Petition for court-ordered evaluation; preparation~~
47 ~~procedures for prepetition screening~~

1 ~~A. On receiving the application for evaluation, the screening~~
2 ~~agency, before filing a petition for court-ordered evaluation, shall~~
3 ~~provide prepetition screening within forty-eight hours excluding weekends~~
4 ~~and holidays when possible to determine whether there is reasonable cause~~
5 ~~to believe the person has a persistent or acute disability or a grave~~
6 ~~disability or is a danger to self or others as a result of a mental~~
7 ~~disorder, and whether the person will voluntarily receive evaluation at a~~
8 ~~scheduled time and place.~~

9 ~~B. After prepetition screening has been completed, the screening~~
10 ~~agency shall prepare a report of opinions and conclusions. If prepetition~~
11 ~~screening is not possible, the screening agency shall prepare a report~~
12 ~~giving reasons why the PREPETITION screening was not possible and~~
13 ~~including opinions and conclusions of staff members who attempted to~~
14 ~~conduct prepetition screening or otherwise investigated the matter.~~

15 ~~C. If the prepetition screening agency determines that the~~
16 ~~application for evaluation is to be denied, the denial shall be stated in~~
17 ~~writing on the application form and shall be reviewed and confirmed by the~~
18 ~~medical director of the screening agency or the medical director's~~
19 ~~designee. If the screening agency determines that although the person~~
20 ~~does not currently meet the criteria for court-ordered evaluation, there~~
21 ~~are reasonable grounds to believe that the person has a mental disorder,~~
22 ~~is in need of further evaluation or treatment and is able and willing to~~
23 ~~pursue private or public evaluation or treatment services available to the~~
24 ~~person in the community, the screening agency shall assist the proposed~~
25 ~~patient in finding specific evaluation or treatment services in the~~
26 ~~proposed patient's area and, if requested, make a direct referral to a~~
27 ~~person, agency or organization providing behavioral health services for~~
28 ~~the purpose of evaluation and treatment.~~

29 ~~D. If, based on the allegations of the applicant for the~~
30 ~~court-ordered evaluation and the prepetition screening report or other~~
31 ~~information obtained while attempting to conduct a prepetition screening,~~
32 ~~the SCREENING agency determines that there is reasonable cause to believe~~
33 ~~that the proposed patient is, as a result of mental disorder, a danger to~~
34 ~~self or to others or has a persistent or acute disability or a grave~~
35 ~~disability and that the proposed patient is unable or unwilling to~~
36 ~~voluntarily receive evaluation or is likely to present a danger to self or~~
37 ~~to others, has a grave disability or will further deteriorate before~~
38 ~~receiving a voluntary evaluation, the SCREENING agency shall prepare a~~
39 ~~petition for court-ordered evaluation and shall file the petition, which~~
40 ~~shall be signed by the person who prepared the petition unless the county~~
41 ~~attorney performs these functions. If the SCREENING agency determines~~
42 ~~that there is reasonable cause to believe that the person is in such a~~
43 ~~condition that without immediate hospitalization he is likely to harm~~
44 ~~himself or others, the SCREENING agency shall take all reasonable steps to~~
45 ~~procure such hospitalization on an emergency basis.~~

46 ~~E. The agency may contact the county attorney in order to obtain~~
47 ~~assistance in preparing the petition for court-ordered evaluation, and the~~

1 ~~SCREENING~~ agency may request the advice and judgment of the county
2 attorney in reaching a decision as to whether the court-ordered evaluation
3 is justified.

4 ~~F. The county attorney may prepare or sign or file the petition if~~
5 ~~a court has ordered the county attorney to prepare the petition, OR A~~
6 ~~SHERIFF MAY FILE THE PETITION PURSUANT TO SECTION 31-126, SUBSECTION A.~~

7 ~~G. If a petition for court-ordered evaluation alleges danger to~~
8 ~~others as described in section 36-501, the screening agency, before filing~~
9 ~~such a petition, shall contact the county attorney for a review of the~~
10 ~~petition. The county attorney shall examine the petition and make one of~~
11 ~~the following written recommendations:~~

12 ~~1. That a criminal investigation is warranted.~~

13 ~~2. That the screening agency shall file the petition.~~

14 ~~3. That no further proceedings are warranted. The screening agency~~
15 ~~shall consider the recommendation in determining whether a court-ordered~~
16 ~~evaluation is justified and shall include the recommendation with the~~
17 ~~petition if the SCREENING agency decides to file the petition with the~~
18 ~~court.~~

19 ~~H. The petition shall be made in the form and manner prescribed by~~
20 ~~the director.~~

21 ~~I. If a petition for court-ordered evaluation is filed by a~~
22 ~~prosecutor pursuant to section 13-4517, a prior application for~~
23 ~~court-ordered evaluation or prescreening is not necessary.>>~~

24 Section 1. Study committee on inmate mental health services;
25 membership; duties; reports; delayed appeal

26 A. The study committee on inmate mental health services is
27 established consisting of the following members:

28 1. Two members of the house of representatives who are from
29 different political parties and who are appointed by the speaker of the
30 house of representatives. The speaker of the house of representatives
31 shall designate one of these members to serve as cochairperson of the
32 committee.

33 2. Two members of the senate who are from different political
34 parties and who are appointed by the president of the senate. The
35 president of the senate shall designate one member to serve as
36 cochairperson of the committee.

37 3. The director of the state department of corrections or the
38 director's designee.

39 4. The director of the Arizona health care cost containment system
40 administration or the director's designee.

41 5. The following members who are appointed by the speaker of the
42 house of representatives:

43 (a) One member who represents the regional behavioral health
44 authority.

45 (b) One member with a family member who is currently in jail or
46 prison and who has a mental health diagnosis.

1 (c) One member who is a prosecutor with a city, town or county or
2 this state and who prosecutes defendants with mental illness.
3 (d) One member who represents a law enforcement agency from a
4 county with a population of less than one million persons.
5 6. The following members who are appointed by the president of the
6 senate:
7 (a) One member who is employed by a special health care district.
8 (b) One member who is an attorney with experience representing
9 mentally ill defendants who are in jail or who are sentenced to prison.
10 (c) One member who represents a law enforcement agency from a
11 county with a population of one million persons or more.
12 B. The committee shall meet at least once each year at a date and
13 time determined by the committee.
14 C. Committee members are not eligible to receive compensation but
15 are eligible for reimbursement of expenses under title 38, chapter 4,
16 article 2, Arizona Revised Statutes.
17 D. The committee shall:
18 1. Examine ways to improve the screening process for individuals
19 who are arrested and taken to jail or prison.
20 2. Study and recommend ways to improve access to adequate mental
21 health screenings for individuals who are in jail or prison.
22 3. Study and address ways to improve screenings for mental health
23 risks, including dangers to the individual and others, for individuals who
24 are in jail or prison.
25 4. On or before December 31, 2026 and December 31, 2027, submit a
26 report regarding the committee's activities and recommendations to the
27 governor, the president of the senate and the speaker of the house of
28 representatives and provide a copy of this report to the secretary of
29 state.
30 E. This section is repealed from and after December 31, 2027.

31 Enroll and engross to conform
32 Amend title to conform

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